



File No.: EXP202204902

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On April 4, 2022, a complaint was filed with registration number REGAGE22e00011348544, REGAGE22e00011999302, and REGAGE22e00013834165 before the Spanish Agency for Data Protection against XFERA MÓVILES, S.A. with NIF A82528548 (hereinafter, XFERA). The reasons for the complaint are as follows:

The complainant submits a complaint for receiving commercial calls on fixed and mobile lines (**PHONE.1 and **PHONE.2) registered in the Robinson List since 03/18/19, providing a Certificate to substantiate this.

Additionally, they provide documentation proving ownership of the receiving lines and a screenshot of a conversation on Twitter with the promoted entity, requesting opposition on 03/01/22. On the other hand, they indicate a chronology of the received calls and calling lines but do not provide documentary evidence of their receipt.

In the grouped entry REGAGE22e00011999302, they state that they received a new call from the respondent on their mobile line on 04/06/22, providing a screenshot showing the receipt of a call from line **PHONE.3 at 14:50 hours.

They also provide proof of a query of the calling line number in the CNMC, showing the respondent as its current operator.

In the grouped entry REGAGE22e00013834165, they state that they received a new call from the respondent on their mobile line on 04/19/22, providing a screenshot showing the receipt of a call from line **PHONE.4 at 16:41 hours.

The complainant indicates that during the call, the telemarketer stated they were calling from VODAFONE, although the complainant alleges that it is the respondent entity since, upon checking the calling line in the CNMC, they confirmed that its operator is the respondent. (They also provide proof of the query).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to XFERA for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on May 4, 2022, as evidenced by the acknowledgment of receipt in the file.

On June 7, 2022, a response was received by this Agency indicating that they have verified in their system that the complainant's numbers have not been commercially impacted by any action authorized by XFERA and that their collaborators must provide them with a monthly updated list of the outgoing numbers they are going to use, with the use of uncommunicated numbers not being permitted.

They have verified that the number **PHONE.3 was reported for irregular conduct due to calls made to the customer service of another company in the Group during the month of April, being included in a blacklist as potentially fraudulent. They detected that the mentioned number was assigned to the respondent party, being in the pool of unassigned numbers until April 26.

On April 26, the line was assigned to a client whose identity has been correctly verified. It has also been reviewed that, during the reference dates, the line, which was not assigned, had not generated traffic either.

THIRD: On July 4, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control

authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

RESULT OF THE INVESTIGATION ACTIONS

The search for the operators of the telephone numbers indicated in the complaint was incorporated through a diligence in the Numbering and Telecommunications Operators Registers.

1. Regarding the telephone numbers ***PHONE.3 and ***PHONE.4. An information request was made to the final operator of the telephone numbers, the respondent, regarding the ownership of both numbers, and they state that:

A. Regarding line ***PHONE.3:

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The line was not assigned as of April 6, 2022; this line was activated on April 28, 2022.

The line was not ported but was deactivated on March 3, 2022, by our fraud department upon detecting fraud. From March 3 to April 28, the line was part of the numbering pool of my client and does not have network traffic.

On April 6, 2022, between 1:00 PM and 4:00 PM, there is no record of the indicated call in the network. It is necessary to clarify that the line in question had no traffic between March 3 and April 28, as the number was, in fact, not assigned. However, activity originating from this number has been detected on our clients' lines. This is possible because this number was very likely subject to CLI spoofing, meaning that the calls did not originate from that line (which was indeed inactive) but were used to mask another number. Thus, this number appears as the calling number, but the call does not actually come from the indicated line.

B. Regarding the line ***PHONE.4:

The line was not assigned as of April 19, 2022.

As in the previous case, this line was registered in prepaid mode on March 3, 2022, and was deactivated that same day, 45 minutes later, upon detecting fraud in the registration. The person who registered this line and the previous one used the same details.

On April 19, 2022, between 3:00 PM and 6:00 PM, there is no record of the indicated call in the network.

It is necessary to clarify that the line in question had no traffic between March 3 and April 28, as the number was, in fact, not assigned. However, activity originating from this number has been detected on our clients' lines. This is possible because this number was very likely subject to CLI spoofing, meaning that the calls did not originate from that line (which was indeed inactive) but were used to mask another number. Thus, this number appears as the calling number, but the call does not actually come from the indicated line.

2. Regarding the phone number ***PHONE.5.

A request for information was made to the final operator of the phone number, the entity LEAST COST ROUTING TELECOM S.L., regarding the ownership of this number; they state that on July 14, 2022, the owner of this number was:

LEADDESK, S.L. with NIF: B88511092 and registered office at C/ ***ADDRESS.1 and contact data ***EMAIL.1.

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The line is used through SIP trunking connection (Session Initiation Protocol connection that consists

of using voice over IP) via a VoIP service (Voice over IP). VoIP technology is the virtual equivalent of a traditional line for businesses, allowing calls to be made over the internet. This technology provides the telephone service for the line ***PHONE.5. There is no physical installation at a residence; there is a connection to voice services via the Subscriber's or User's internet so that the voice signal is sent digitally over their IP network.

Regarding the calling line, it is a final customer of LEAST COST ROUTING TELECOM, S.L., not a Reseller.

The mentioned line has been active in our system since April 20, 2022, and is still active today.

The call from the number ***PHONE.5 to the number ***PHONE.2 is confirmed on July 14, 2022, between 8:00 PM and 10:00 PM.

A request for information was made to the owner of the line, the entity LEADDESK, S.L. on October 21, 2022, via electronic notification, which expired on November 7.

The request was reiterated by postal means on November 16 and was delivered on November 30 to the registered office at C/ ***ADDRESS.1, and for the second time, it was reiterated to the same registered office on December 27, which was delivered on January 11, 2023, and to the email ***EMAIL.1.

No response has been received as of the date of this report.

On January 13, 2023, the postal address was verified with the AEAT, which turns out to be ***ADDRESS.2.

Through a diligence, it is verified that it is the same address that appears on the website ***URL.1: LeadDesk SL, ***ADDRESS.2, and in the privacy policy ***URL.2, the contact of the DPD is indicated: Privacy Compliance Officer, c/o LeadDesk Ltd, Address: Hämeentie 19, Helsinki, ES, 00500, Finland, Email: ***URL.3.

And at ***URL.4, the contact in Spain is indicated: A.A.A., Country Manager, Spain, ***PHONE.6, ***EMAIL.2.

A request for information was made by postal means to this other address on January 24, 2023, and there is no record of delivery or response as of the date of this report.

LEGAL GROUNDS

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I

Competence

In accordance with the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for the Protection of Data by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for the Protection of Data must process in the exercise of the competencies attributed to it by other laws."

II

Right to the protection of personal data and privacy in relation to unsolicited communications, traffic and location data, and subscriber directories

Article 48 of the LGT, under the heading "Right to the protection of personal data and privacy in

relation to unsolicited communications, traffic and location data, and subscriber directories," provides in its section 1.b) the following:

"1. Regarding the protection of personal data and privacy in relation to unsolicited communications, end users of electronic communications services shall have the following rights:

(...)

b) To oppose receiving unwanted calls for commercial communication purposes made through systems other than those established in the previous letter and to be informed of this right."

III

Conclusion

Through the actions carried out by this Agency, it has been determined that two of the calling numbers belonging to the operator XFERA were not assigned to any customer on the date of the claimed calls. However, activity originating from this numbering is detected on lines of its customers. This is possible because this numbering was very likely subject to CLI spoofing (which is a way of masking the identity of companies or individuals by changing the number that appears on the caller ID, using the number to make it seem as if another company or person is calling). Therefore, it cannot be determined who made the call and who is responsible for it.

The third calling number is from the operator LEAST COST and the final holder is LEAD DESK, and the call is confirmed in both origin and destination.

LEAD DESK has not responded to the requests sent by this Agency, so in this case, it has not been possible to determine that LEAD DESK is the final responsible party for the claimed call. Thus, the principle of the presumption of innocence prevents attributing an administrative infraction when no evidence has been obtained and verified that substantiates the facts motivating the accusation or the involvement of the alleged infringer in them.

Therefore, in accordance with what has been stated, by the Director of the Spanish Agency for the Protection of Data,

IT IS AGREED:

FIRST: TO ARCHIVE the present actions.

SECOND: TO NOTIFY this resolution to LEAD DESK, S.L. and XFERA MÓVILES, S.A. and to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for the Protection of Data within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-091222

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